

**Judgment Sheet
IN THE LAHORE HIGH COURT,
LAHORE**

JUDICIAL DEPARTMENT

Crl. Revision No.72278 of 2019

Anwar Hussain

Versus

The State, etc.

JUDGMENT

Date of Hearing: 02.07.2021
Petitioner by: Mian Mureed Hussain, Advocate.
Respondent No.2 by: Qazi Ammar Arshad, Advocate.
The State by: Mr. Irfan Zia, Deputy Prosecutor General.

Syed Shahbaz Ali Rizvi, J. – Through this criminal revision, the petitioner/convict has assailed the sentence of fine imposed by the learned courts below vide judgment dated 23.07.2019 passed by the learned Judicial Magistrate 1st Class, Mandi Bahauddin, whereby he was convicted in private complaint filed by respondent No.2 under Section 6(5)(b) of the Muslim Family Laws Ordinance, 1961 and sentenced to simple imprisonment for one year with fine of Rs.5,00,000/- and in case of default, to undergo simple imprisonment for two months, whereas in appeal the imprisonment of the petitioner was reduced to that of already undergone, however, sentence of fine was maintained by the learned Additional Sessions Judge, Mandi Bahauddin vide impugned judgment dated 29.10.2019.

2. Heard. Record perused.

3. Dealing with criminal revision in hand the only point in issue to be resolved is that whether the sentence of fine imposed against the petitioner can be reduced in consideration of the circumstances weighed by the learned appellate court while reducing the quantum of sentence of imprisonment imposed. For convenience initial text of Clause (b) of sub section (5) of Section 6 of Muslim Family Laws Ordinance, 1961 is reproduced as under:

Section 6(5)(b) – “On conviction upon complaint be punishable with simple imprisonment which may extend to one year, or with fine which may extend to five thousand rupees, or with both.”

While the aforesaid clause has been substituted later on by Punjab Muslim Family Laws (amendment) Act, 2015 (Act No.XIII of 2015) which reads as under:

Section 6(5)(b) – “On conviction upon complaint be punishable with the simple imprisonment which may extend to one year and with fine of five hundred thousand rupees.”

The legislature through the above reproduced substitution of sub clause (b) sub section (5) of Section 6 of the Muslim Family Laws Ordinance, 1961 has withdrawn the discretion of Court with regard to quantum of fine to be imposed and imposition of fine itself which very clearly transpires intention of the legislature.

4. The case in hand when viewed in the context of the substitution/amendment mentioned supra leads this Court to conclude that imposition of fine of Rs.500,000/- to a convict under Section 6(5)(b) of Punjab Muslim Family Laws (amendment) Act, 2015 (Act No.XIII of 2015), is mandatory. Though

discretion with regard to the quantum of sentence of imprisonment is provided yet no such space is given in case of sentence of fine. The judgments referred by learned counsel for the petitioner reported as Ishtiaq Ahmad v. The State and others (PLD 2017 Supreme Court 187) and Noor Muhammad and another v. State, etc. [PLJ 2018 Cr.C. (Lahore)275 (DB)] are not applicable to the facts of instant case and subject legal proposition. No illegality, jurisdictional error or impropriety in the judgments passed by the learned courts below with regard to the question of law involved could be surfaced. Hence, this petition being misconceived is hereby dismissed.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting

Judge

Mukhtar